continues? Does the special tribunal have to abort proceedings nevertheless because six months have come and gone? What if the remaining 457 witnesses cannot be heard in six months, as in Bhagat Singh's case in which Rai Sahib Pandit Sri Kishen had heard only some 200 witnesses in ten months of hearings, because there was just not enough time to hear them all? What then? The question deserves an answer because this is exactly what happened in Bhagat Singh's case. The 457 witnesses could not be heard because there was no time to hear them all in six months. In the end all that this exercise of Section 72 did was to deprive the accused of due process and the right to a fair trial.

This is how the law in Bhagat Singh's case was used coercively by the colonial authorities for the purposes of an extrajudicial execution. It was a case of colonial coercive legalism. The rule of law was suspended but its rubric was retained. What is the consequence of such an illegality? Should the verdict be set aside after all these years? If so, by which court and where? And should the Indian government be involved? Or, should there be an apology? If so, by whom and to whom? None of the original participants are alive, and there are no living persons with rights to vindicate. Yet, the issue may still be worth considering. There is a case for saying that, rather than an apology being demanded, Bhagat Singh's conviction and sentence should be set aside by virtue of the grant of a royal pardon. He was convicted and hanged in the face of gross procedural irregularities and denial of due process and natural justice. Judicial orders that he be allowed interviews with his father and his legal advisers to best prepare his defence were deliberately flouted by the jail authorities under blatant government pressure so that in the end he and others on trial simply stopped attending court. On the face of it, the rule of law was preserved, but underneath it all it had been hollowed out through a relentless abuse of executive power by the colonial state. Letters and petitions produced in this book, previously never published, show the remorseless determination by which he continued to bring these concerns before the court but to no avail. The law on the grant of a royal pardon is such that it has been well established in the UK for thirty years. It is clear in its intent, 'that it is an error to regard the